

7	Lopez vs. Trans Pak, Inc. 2024-01437506	Motion to Compel Further Responses to Form Interrogatories The motion by Plaintiff Alejandro Lopez (“Plaintiff”) for an order compelling Defendant TransPak, Inc. (“TransPak”) to provide further responses to Plaintiff’s Form Interrogatories – Employment, Set One, is moot in part and granted in part. Plaintiff’s motion for an order compelling TransPak to provide further responses to Plaintiff’s Form Interrogatories – General, Set One, is moot. Plaintiff seeks an order compelling TransPak to serve further responses to form interrogatories – employment, set number one, numbers 200.3, 200.4, 200.6, 201.1, 201.2, 201.3, 201.5, 201.6, 204.3, 204.4, 204.5, 204.6, 204.7, 207.1, 207.2, 209.2, 211.1, 211.2, 214.1, 215.1, and 216.1 and further responses to form interrogatories – general, set number one, numbers 3.1, 3.6, 3.7, 12.1, 12.2, 12.3, 12.6, and 17.1. The Court notes TransPak did not include the verification for TransPak’s supplemental responses; however, there is no dispute TransPak served verified supplemental responses on January 30, 2026. (Vang Decl. ISO Motion to Compel Further Responses to Employment Interrogatories, ¶ 16, Exhibit L; Vang Decl. ISO Motion to Compel Further Responses to General Interrogatories, ¶ 16, Exhibit L; Reply ISO Motion to Compel Further Responses to Employment Interrogatories, 3:13-14 and 4:14-15; Reply ISO Motion to Compel Further Responses to General Interrogatories, 3:10-11 and 4:12-13.) Although there is no dispute verified supplemental responses were served, the Court notes TransPak did not show TransPak supplemented its response to form interrogatory number 209.2. (<i>See</i>, Vang Decl., ROA No. 112, ¶ 16, Exhibit L; <i>see also</i>, TransPak Separate Statement, ROA No. 114, 22:24-23:27.) TransPak initial responses included only objections. TransPak did not justify its objections to this interrogatory. The Court finds Plaintiff sufficiently met and conferred with TransPak before filing this motion. Although Plaintiff sent only one letter and demanded responses within a week, Plaintiff waited over a month for supplemental responses before bringing these motions. Accordingly, the motion to compel further responses to interrogatory number 209.2 is granted. (Code Civ. Proc., § 2030.300, subd. (a); <i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal.4th 245, 255.) TransPak shall serve a verified supplemental Code-compliant response to form interrogatory number 209.2 within 15 days.

		Plaintiff's motions as to the remaining interrogatories are moot. Transpak did not show TransPak acted with substantial justification or that the imposition of sanctions would be unjust. TransPak shall pay The Finkel Firm the total amount of \$3,500 in 30 days. (Code Civ. Proc., § 2030.300, subd. (d); Cal. Rules of Ct., Rule 3.1348(a).) Plaintiff shall give notice.
8	Menon vs. Memorial Care Saddleback Medical Center 2024-01379144	Motion for Summary Judgment and/or Adjudication Defendant Cimberly Penick, D.O.'s ("Defendant") Motion for Summary Judgment is granted. Plaintiffs Parvathi Devi Geetha Devi and Shreejith Menon, individually, and as the guardian ad litem of Krishna Menon ("Minor," collectively, "Plaintiffs"), assert causes of action for medical negligence and negligent infliction of emotional distress against Defendant. With respect to the moving defendant, Plaintiffs allege Defendant was negligent in the "prenatal, labor and delivery and post-delivery care of" Minor and Devi; that Minor "suffered severe and irreversible brain damage and additional physical injuries that currently require daily dialysis treatments and a feeding tube on year post-birth"; and, Devi "suffered severe pain, suffering, and emotional distress." (Compl. at pp. 4-5, ¶ GN-1.) Under their fourth cause of action for negligent infliction of emotional distress, Devi and Menon allege they are "entitled to recover for this emotional distress" pursuant to <i>Thing v. La Chusa</i> (1989) 48 Cal. 3d 644." (Compl. at p. 7, ¶ GN-1.) Defendant moves for summary judgment as to every negligence claim against her on the grounds that: [1] she at all times complied with the applicable standard of care; [2] her conduct was not a substantial factor in causing any of the alleged damages; and, [3] a bystander theory of negligent infliction of emotional distress fails without the existence of any underlying, independently actionable tort. (ROA 102 [Not. of Mot. at p. 2].) <u>Summary Judgment Standard</u> "[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any